

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

Samukai Konneh, of the City of Monrovia, Republic)
of Liberia.....Appellant)
VERSUS) APPEAL
)

The Intestate Estate of Morris Massaquoi, represented)
by its administrator, T. Philip Massaquoi, of the City of)
Monrovia, Republic of Liberia..... Appellee)

GROWING OUT OF THE CASE:)
)

The Intestate Estate of Morris Massaquoi, represented)
by its administrator, T. Philip Massaquoi, of the City of)
Monrovia, Republic of Liberia.....Plaintiff)

VERSUS) ACTION:
) DAMAGES FOR BREACH
) OF CONTRACT

Samukai Konneh, of the City of Monrovia, Republic)
of Liberia.....Defendant)
)

Heard: June 24, 2024 Decided: August 15, 2025

MADAM CHIEF JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

This appeal arises from the final ruling of the Sixth Judicial Circuit, Civil Law Court, Montserrado County, affirming the jury’s verdict in favor of the appellee, the Intestate Estate of Morris Massaquoi, and the award of special damages in the amount of One Hundred Three Thousand United States Dollars (US\$103,000.00) for breach of contract by the appellant, Samukai Konneh.

Before proceeding, we take judicial cognizance of this Court’s records which show that the parties herein are before the Supreme Court for the second time. The first time was in the case: “*The Intestate Estate of Morris Massaquoi v. Samukai Konneh*, Supreme Court Opinion, March term 2016”, when the Supreme Court extensively opined on the justiciability of an action of summary proceedings to recover possession of real property instituted by the Intestate Estate of Morris Massaquoi against Samukai Konneh, and a subsequent petition for declaratory judgment instituted by Samukai Konneh against the Intestate Estate of Morris

Massaquoi. In the referenced case, this Court speaking through Mr. Justice Philip A. Z. Banks, III. opined, *inter alia*, that following the expiration of the lease agreement between Intestate Estate of Morris Massaquoi as Lessor and Mr. Samukai Konneh as Lessee, the latter should have surrendered the demised premises unto his lessor, and sought appropriate legal redress if he believed that his Lessor, the Intestate Estate of Morris Massaquoi, had violated his right to quiet enjoyment of the subject property pursuant to the lease agreement; that the trial court acted without the pale of the law when it ruled in favor of Mr. Konneh, ignoring the fact that while an appeal by Konneh from the action of summary proceedings to recover possession of real property was pending determination before the trial court, Mr. Samukai Konneh, through his legal counsel, proceeded to also file a petition for declaratory judgment before the self-same trial court, wherein he alleged the identical claims that were stated in the appeal from the summary proceedings to recover possession of real property which was already being heard *de novo*; that the trial court also erred in granting possessory right to Mr. Samukai Konneh from his petition for declaratory judgment, as the only purpose of a petition for declaratory judgment is to declare the rights of the parties thereto; and that the judgment declaring the rights of a party is the legal instrument to be employed by the interested party to obtain the enforcement of a judgment. The Supreme Court, at that time, therefore ordered Mr. Samukai Konneh ousted and ejected from the subject property, and that the Intestate Estate of Morris Massaquoi be placed in possession of its properties.

Predicated on the Supreme Court's decision in the aforementioned case, the appellee herein, the Intestate Estate of Morris Massaquoi, instituted an action for damages before the Sixth Judicial Circuit, Civil Law Court, Montserrado County, on September 15, 2016. The appellee alleged that the appellant's failure to vacate and surrender the subject property following the expiration of the lease agreement resulted in financial losses to the appellee. The appellee had entered into a lease agreement with a neutral third party, a Chinese national named Mr. Zhang Kuanfu, on November 10, 2010, for a period of five (5) years at an annual rental of Fifteen Thousand United States Dollars (US\$15,000.00), relying on the undisputed fact that the property subject to the lease would be available on or before January 1, 2011, the expiration date of the prior lease then encumbering the property. The appellee further alleged that notwithstanding the appellant's breach of the lease agreement, specifically the subleasing of the subject properties without the knowledge and consent of the appellee, the latter did not pursue cancellation proceedings, noting that the lease agreement was nearing its expiration. However, the appellant failed and neglected to yield and surrender the subject properties, instead continuing to illegally hold over and utilize the said properties, to the detriment of the appellee. This conduct caused the appellee to lose income it would have generated under the lease agreement purportedly entered into with Mr. Kuanfu. The appellee therefore prayed the trial court to award it the sum of One Hundred Thirteen Thousand Five Hundred United States Dollars (US\$113,500.00) as special damages; the amount of Eighty-Two Thousand Five Hundred United States Dollars (US\$82,500.00), representing the anticipated rental for five and one-half (5½) years during which the appellant illegally withheld the subject properties; and legal fees in the amount of Thirty Thousand United States Dollars (US\$30,000.00).

In his answer filed on October 20, 2016, the appellant, Mr. Konneh averred, *inter alia*, that it was the appellee who breached the lease agreement between the parties by placing a tenant on the subject property and receiving rental, while the lease agreement was in force and effect,

thus violating the appellant's right to quiet enjoyment of the demised premises; that because the legal proceedings instituted by the appellee against the appellant exhausted most of the lifetime of the lease, and the appellee being responsible for the loss time, as such, damages cannot not lie against the appellant. The appellant therefore prayed the trial court to deny the appellee's claim for damages, and to rule the costs of the proceedings against the appellee.

The records show that following the filing of the appellee's reply, both parties filed series of procedural challenges which ultimately culminated into the case being ruled to trial with the appellant producing two regular witnesses in persons of T. Philip Massaquoi, the appellee's administrator, and Cllr. Joseph M. Kollie, and one subpoenaed witness in person of Samukai Konneh, the appellant herein. The records further show that the appellant was subpoenaed to produce the original copy of a One Thousand Five Hundred United States Dollars (US\$1,500.00) receipt testified to by the appellee's second witness, Cllr. Kollie, which receipt was issued to the appellant following his payment of rental arrears to the appellee.

On the other hand, the appellant testified *pro se*, and also produced a subpoenaed witness in person of Beaford S. Tamba, Sr.

Following the trial and the submission of oral and documentary species of evidence adduced by both parties, closing arguments were had and the trial judge instructed the jury on the applicable laws. Thereafter, the jury retired to their room of deliberation and subsequently returned a verdict in favor of the appellee, holding the appellant liable to the appellee for the sum of One Hundred Three Thousand United States Dollars (US\$103,000.00) as special damages. The appellant noted exceptions to the verdict returned by the jury, and on April 16, 2018, filed a motion for new trial. The appellant averred in his motion, *inter alia*, that the jury's verdict was contrary to the weight of evidence because special damages must be pleaded with particularity and same must be proven during trial; that the appellee failed to prove any special damages during trial to warrant the granting of special damages in its favor.

Subsequent to the filing of its resistance to the motion for a new trial, the trial court entertained arguments thereon, *pro et con*, and thereafter ruled on the motion, denying same. The court incorporated its ruling into the final judgment, which confirmed the jury's verdict holding the appellant liable for damages resulting from the breach of the lease agreement entered into with the appellee, in the amount of One Hundred Three Thousand United States Dollars (US\$103,000.00) as special damages.

. We quote below excerpt of the trial court's final ruling, to wit:

"...The motion for new trial and the resistance thereto were heard on April 20, 2018, and the court reserved its ruling.

The motion, resistance and oral argument of the parties present one cardinal issue for determination. The issue is whether the majority verdict of the jury in which it awarded plaintiff special damages of US\$103,000.00, was contrary to the weight of evidence adduced at the trial.

During trial, the plaintiff produced evidence to prove its claim for special damages of US\$103,000.00. The plaintiff produced evidence to prove its claim for US\$82,500.00,

same being the income it lost as a result of the defendant's failure to surrender one of the stores for a period of five and half years, at an annual rental of US\$15,000.00. This is the amount the Chinese national would have paid for 5 and a half years, but because the defendant refused to surrender [the leased premises], the plaintiff lost that amount. The plaintiff also produced evidence in support of its claim for legal fees in the amount of US\$30,000.00 and the plaintiff produced evidence in support of its claim for outstanding rental arrears in the amount of US\$1,000.00. The trial jury awarded plaintiff special damages of US\$103,000.00.

The defendant was placed on bare denial, as such it was precluded from producing any affirmative matter during trial, except to produce evidence in support of his general denial.

In the mind of this court, the jury's verdict is consistent with the evidence adduced at trial. The jury is the exclusive judge of the evidence, and must in reason, be the exclusive judge as to what constitutes the preponderance of the evidence; where the jury reached a conclusion after having given some consideration to the evidence which is sufficient to support a verdict, the same should not be disturbed by the court. *AMERICAN LIFE INSURANCE COMPANY INC. VS. HOLDER*, 29 LLR 143,165 (1981).

Although the defendant alleged that the jury's verdict was contrary to the weight of the evidence adduced during the trial, he failed to state with particularity how and in what manner the jury's verdict was contrary to the weight of evidence adduced at the trial, and same is not detailed enough to enable the court reach a conclusion on whether to grant the motion for new trial. *Super Cold Services vs. Liberia American Insurance Corporation*, 42 LLR 321, 330 (2004). The movant is under a legal duty to clearly state with particularity the evidence adduced at the trial that the verdict is contrary to, this the movant failed to do.

In its argument before this court, the movant's counsel alleged that this judge influenced the jury's verdict by its statement that the Supreme Court has already determined that movant breached the lease agreements. The Supreme Court's opinion was pleaded by the respondent/plaintiff, argued in plaintiff's opening statement and in its final argument before the jury. The court merely stated what was already in evidence.

WHEREFORE, and in view of the foregoing, the verdict of the trial jury being in harmony with the evidence adduced at the trial, the motion for new trial is denied and the resistance sustained. Accordingly, the verdict of the jury is hereby confirmed and affirmed..."

The appellant noted exceptions to the final ruling of the trial court, announced an appeal to the Supreme Court, and thereafter filed a five (5) count bill of exceptions, three (3) of which we deem pertinent to the disposition of this appeal, as it is within the purview of this Court to determine which issues are germane and relevant to the disposition of an appeal. *Eric F. Nagbe v. Thierno Mountanga Barry*, Supreme Court Opinion, March Term, 2024; *Frederick Kromah et al. v. Bea Mountain Mining Company*, Supreme Court Opinion, October Term, 2022; *CBL v. TRADEVCO*, Supreme Court Opinion, October Term, 2012; *Knuckles v. TRADEVCO*, 40 LLR 49, 53 (2000).; hence, we quote verbatim the said counts of the bill of exceptions, to wit:

“Defendant’s Bill of Exceptions

1. That, because the jurors awarded Plaintiff the sum of US\$103,000.00 (One Hundred Three Thousand United States Dollars) as special damages and from the records in the case file, that is to say, the Plaintiff’s complaint as well as the evidence produced by the Plaintiff, there is no showing of any special damages, yet Your Honor upheld the majority verdict of the trial jurors and to which Defendant excepts...
2. That because the statute, specifically Chapter 2, section 2.13(1) of our Civil Procedure Law provides that for a debt or damages for breach of contract, an action to obtain payment of a debt or for damages for breach of a contract based on a written instrument or acknowledgement shall be commenced within seven (7) years of the time the right to relief accrued. In the instant case, Plaintiff failed to bring said Action of Damages for breach of contract within the statutory period because Defendant’s testimony as can be seen from sheet 2, 16th Day Jury Sitting, March Term A. D. 2018, Monday, April 9, 2018 as follow, “The truth of the matter is that upon signing those two agreements, Mr. Massaquoi went to Victor Tarr and told Victor Tarr that I sent him to collect the second year rent. Based on that, Victor Tarr gave him US\$900.00 as the second year rent which testimony was never rebutted by Plaintiff, but despite this, the Defendant requested Your Honor to charge the Jurors on the statute of limitation since Plaintiff came into knowledge of said transaction in 2004, but Your Honor refused and to which Defendant excepts...
3. That Defendant says also because Plaintiff elected to bring an action for breach of contract in 2016, more than three years after its expiration in 2011, when there was no contract, yet the Jurors brought a majority verdict, and to which verdict Defendant excepts...”

Having reviewed the records and considered the alleged errors imputed to the trial judge, the issues for our consideration are:

1. That given the facts and circumstances of this case that the leases between the parties having expired, is the appellee’s claim for damages for breach of contract barred by the provision of Section 2.13(1) of the Civil Procedure Law of Liberia.
2. Whether the appellee sufficiently pleaded and proved special damages as required by law to substantiate the award of special damages by the trial jury.

We first take cognizance of the fact that an affirmative answer to the first issue will obviously obviate the second issue.

In addressing the first issue, viz., whether the appellee’s claim for damages is barred under Section 2.13(1) of the Civil Procedure Law of Liberia in the absence of an existing contract, we quote the said provision of the law, thus:

“An action to obtain payment of a debt or for damages for breach of a contract based on a written instrument or acknowledgment shall be commenced within seven years of the time the right to relief accrued.”

The records show that the parties entered into two separate lease agreements; that the first lease agreement was entered into by the appellee and the appellant on the 1st day of January, 2004, for a period of seven (7) years which period ended on the 1st day of January, 2011; that the second lease agreement was entered into on the 1st day of February, 2004, also for a period of seven (7) years, which period ended on the 1st day of February 2011.

In the contemplation of section 2.13(1) of the Civil Procedure Law, the appellee had seven (7) years within which it could institute an action of damages for breach of contract, if it was of the view that the appellant had engaged in conduct that was in violation of the lease agreement, and the said seven (7) years was to commence as of the time the right to relief accrued, which period had not expired at the time of the appellee filing its action of damages for breach of contract.

However, the appellant's contention is not concerned with the statute of limitation, but with the fact that in the absence of an existing contract, the appellee cannot file an action for damages on an expired contract. We disagree with the appellant's interpretation of the provisions of the quoted law, viz., section 2.13(1) of the Civil Procedure Law.

This Court says that the said provision of the law is clear that any party alleging a breach of a contract, whether expired or current, can bring an action for the breach of said contract within 7 (seven) years after the breach occurs, and we so hold.

Having established that the appellee's suit was within the contemplation of the law, we now proceed to determine the second issue, viz., whether the appellee sufficiently pleaded and proved special damages as required by law to have warranted the award of special damages by the trial jury.

The Supreme Court has emphasized that special damages, the specific monetary losses that the plaintiff claims to have incurred due to the defendant's actions, must be explicitly stated in the pleadings and substantiated with concrete evidence during the trial. Mere allegations without supporting evidence are insufficient because the verdict of the trial jury must be based thereon. *Access Bank (Liberia) Ltd. V. Wael Gharzeddine*, Supreme Court Opinion, March Term, 2004; *Intrusco Corporation v. Mohamoud Osseily*, 32 LLR 558, 568 (1985); *Robertson and Reeves v. The Quiah Brothers*, 49 LLR 412, 431 (2012); *Freeman et al. v. Eid*, 49 LLR 19, 31 (2011).

We firstly note that the trial jury granted a lump-sum amount as special damages without any indication as to what constituted the said lump sum or on what basis said amount was determined. Similarly, the trial court final ruling provided no clarity as to the various specific injuries that sum up to the amount awarded in favor of the appellee, neither did the trial court provide any breakdown of the amount constituting the special damages. However, taking a

que from the appellee's complaint, we observe that its prayer for special damages was predicated on the following breakdown:

1. The purported rental for five one-half (5.5) years at the rate of US\$15,000.00 per annum. ($\$15,000.0 \times 5.5 \text{ yrs.} = \text{US\$}82,500.00$)
2. Legal counsel fees: US\$30,000.00
3. Outstanding debt: US\$1,000.00

The appellee sought to prove his claim of special damages for the amounts enumerated above by initially testifying and presenting into evidence a purported lease agreement he had entered into with a Lessor identified as Zhang Kuanfu, on November 10, 2010; the said agreement was to take effect as of January 2011.

We note that when this agreement was purportedly executed by the appellee, the two lease agreements with the appellants were still active and in force. Also, the purported lease agreement the appellee relied on to claim damages shows no specific effective date. In fact, the lease agreement is self-serving because there is no testimony by the lessee to that agreement to authenticate its existence, and there is no proof of consideration, *i.e.*, receipt indicating proof of payment for any period of the purported lease. Furthermore, there is no evidence that the purported lessee filed any claim against the appellee, such as an action of specific performance, to compel the latter to comply with terms of the said lease; neither did the purported lessee raise any issue with his lessor, the appellee herein, requiring the latter to comply with said purported agreement. Hence, we hold that the purported lease agreement relied on by the appellee to prove that the appellant's conduct caused the appellee loss of rental income in the amount of Seventy-Five Thousand United States Dollars (US\$75,000.00) was not sufficiently proved to warrant the granting of special damages in that amount, and we so hold.

Secondly, the appellee claimed that the appellant was indebted to it in the amount of Two Thousand Five Hundred United States Dollars (US\$2,500.00) and to prove this allegation, the appellee's second witness, Cllr. Joseph Kollie, testified that he convened a conference with the appellee and the appellant; that at the conference, it was determined that the appellant was indebted to the appellee in the amount of Two Thousand Five Hundred United States Dollars (US\$2,500.00), which amount was conceded to by the appellant; that the appellant made part payment of One Thousand Five Hundred United States Dollars (US\$1,500.00) to the appellee through the law office of Taylor & Associates, and was given an official receipt thereof; that the appellant promised to pay the balance amount of One Thousand United States Dollars (US\$1,000.00) thereafter, but failed to make said payment. The witness further testified to the receipt that was issued to the appellant following his payment of the One Thousand Five Hundred United States Dollars (US\$1,500.00).

To further corroborate its 2nd witness' testimony, the appellee requested the issuance of a writ of *subpoena deuces tecum and ad testificandum* to be served upon the appellant to produce the original copy of a receipt of One Thousand Five United States Dollars (US\$1,500.00) paid by the appellant as rental arrears to the appellee.

During his testimony, the following questions and answers were exchanged between the appellant and the appellee's counsel:

"Q. Mr. Witness, on yesterday, April 5, 2018, plaintiff's second witness in person of Cllr. Joseph M. Kollie testified to a receipt issued in your favor by the plaintiff but the copy presented by plaintiff is a duplicate; and when we asked the witness, Cllr. Kollie, he said you have the original. Based upon that a writ of subpoena *duces tecum* and [*ad testificandum*] was issued and served on you. Please say if you brought the document you were subpoenaed for?

A. I did not bring the original copy of the receipt.

Q. By that answer, Mr. Witness, please tell this court and the jury the whereabouts of the receipt that was issued to you by the plaintiff?

A. I have no idea [about] receipt from anybody."

It is the law that mere denial of an allegation without scintilla of evidence as proof thereof is deemed a concession, and he who should speak but remains silent is deemed to have assented. *Constance et al. v. Ajavon et al.*, 40 LLR 295, 304 (2000); *Mandra Forestry Liberia Limited v. Magna Diversified*, Supreme Court Opinion, March Term, 2017.

The records show that the appellant failed and neglected to refute, by preponderance of evidence, the testimonies of the appellee's witnesses to the effect that he was indebted to the appellee in the sum Two Thousand Five Hundred United States Dollars (US\$2,500.00), but had made partial payment of One Thousand Five Hundred United States Dollars (US\$1,500.00); instead, he merely denied his indebtedness to the appellee without any evidentiary proof, which act is deemed a concession. In effect, the appellant has conceded payment of One Thousand Five Hundred United States Dollars (US\$1,500.00), as confirmed by the receipt produced by the appellee's witness. Accordingly, the appellant remains liable for the outstanding balance of One Thousand United States Dollars (US\$1,000.00.).

Lastly, the appellee testified to and entered into evidence an instrument entitled "Service Invoice", bearing the amount of Thirty Thousand United States Dollars (US\$30,000.00) purporting to be the fees for the legal services rendered by the Gbaintor & Associates Law Firm to the appellee for a period of five (5) years [March, 2011 up to and including July 28, 2016]. This amount was included in the special damages awarded to the appellee by the jury.

This Court reiterates the longstanding principle that attorney's fees are ordinarily not recoverable as damages. As stated in the case *Liberia Bank for Development & Investment v. Donzo*, Supreme Court Opinion, October Term 2022, such fees may be awarded only when the underlying wrong is accompanied by aggravating circumstances or actual malice, and even then courts "are very loath to depart from the well-established rule." Where a party seeks purely compensatory damages, counsel fees are almost invariably excluded.

Two narrow exceptions exist: (1) where a statute expressly authorizes an award of attorney's fees, and (2) where the parties have contractually agreed to such an award. Outside these statutory or contractual predicates, a claim for counsel fees stands or falls with proof of

aggravation or malice, which does not obtain in the present case, given that the appellee has not asserted, either directly or indirectly, any malice or aggravation that would necessitate the granting of attorney's fees. Hence, attorney's fees are disallowed.

Notwithstanding our holding *supra* as it pertains to the specific damages proved by the appellee at trial, this Court takes judicial cognizance of the appellant's wrongful withholding of the appellee's property, same having been determined in the case the *Intestate Estate of Morris Massaquoi v. Samukai Konneh*, Supreme Court Opinion, March Term, 2016. In that case the Supreme Court noted from the records that the two lease agreements that the appellee had entered into with the appellant both expired on January 1, 2011 and February 1, 2011, respectively; that following the expiration of the two lease agreements, the appellant failed to surrender the demised premises to the appellee, but continued to remain in illegal possession thereof, from 2011 up to and including 2016, when the Supreme Court Judgment in the *Massaquoi v. Konneh* case was rendered and mandated that the appellant be ousted and evicted from the appellee's properties and the appellee be placed in possession thereof.

Predicated on the appellant's wrongful withholding of the appellee's premises, damages will attach thereto; and this Court having the authority to enter such judgment as the lower court should have entered, awards the appellee the sum of Fifty Thousand United States Dollars (US\$50,000.00) for the five (5) year period, 2011 to 2016, that the appellant wrongfully withheld the appellee's premises.

WHEREFORE AND IN VIEW FOR THE FOREGOING, the final ruling of the Sixth Judicial Circuit, Civil Law Court, Montserrat County is affirmed with modification that the amount awarded by the jury is hereby reduced to the amount of Fifty-One Thousand United States Dollars (US\$51,000.00) representing damages for wrongful withholding and the One Thousand United States Dollars (US\$1,000.00) proved at trial. The Clerk of this Court is ordered to send a Mandate to the trial court, commanding the judge presiding therein to resume jurisdiction over this case and give effect to the Judgment of this Opinion. Costs are ruled against the appellant. AND IT IS HEREBY SO ORDERED.

When this case was called for hearing, Counsellor Tommy N. Dougba appeared for the appellant. Counsellor Molley N. Gray, Jr. appeared for the appellee.